DIFC Courts Small Claims Tribunal Order No. 1 of 2021

APRIL 20, 2021 COURT ADMINISTRATIVE ORDERS

I, Zaki Bin Azmi, Chief Justice of the Dubai International Financial Centre Courts,

Having reviewed—

Dubai Law No. 9 of 2004 in respect of the establishment of the DIFC, as amended;

Dubai Law No. 12 of 2004 in respect of the Judicial Authority at the DIFC, as amended;

DIFC Law No. 10 of 2004 in respect of the DIFC Courts (**"DIFC Court Law"**);

DIFC Courts Order No. 2 of 2007 establishing the Small Claims Tribunal (**"SCT Order"**);

DIFC Courts Order No. 1 of 2010 – Limits of Jurisdiction;

DIFC Courts Order No. 1 of 2014 – Additional Members of the SCT;

DIFC Courts Order No. 2 of 2014 – Resolution of Rental Disputes;

DIFC Courts Order No. 1 of 2015 – Jurisdiction of the SCT;

DIFC Courts Order No. 1 of 2016 – Additional Members of the SCT;

DIFC Courts Order No. 2 of 2016 – Additional Members of the SCT;

DIFC Courts Order No. 1 of 2017 – Legal representation in hearings before the SCT;

DIFC Courts Order No. 3 of 2017 – Additional Members of the SCT;

DIFC Courts Order No. 1 of 2018 – Additional Members of the SCT;

DIFC Courts Order No. 5 of 2019 – Small Claims Leasing Tribunal;

Practice Direction No. 2 of 2010 – SCT Judge; and

Part 53 of the Rules of the DIFC Courts

And Whereas—

(A) The DIFC Court Law authorises the Chief Justice of the DIFC Courts:

(i) “where he considers it appropriate, [to] set up and administer Tribunals of the DIFC Courts, and to authorise rules for their administration which shall be set out in the Rules of Court” (Article 14(3) [sic]); and

(ii) “to appoint members of Tribunals of the DIFC Courts (Article 14(1)(d)).

(B) Rules of Court (Rules of the DIFC Court (the “RDC”)) have been recommended for enactment by His Highness, Sheikh Mohammed Bin Rashid Al Maktoum the Presi-dent of the DIFC, pursuant to Article 31(1) of the DIFC Court Law.

(C) Upon the establishment of the DIFC Courts Small Claims Tribunal (“SCT”), pursuant to the SCT Order, for the purposes of cost efficient and speedy resolution of small dis-putes (as outlined in [SCT Order No.2 of 2007]).

Now I hereby order and direct, as follows

(1) The purpose of this Order is to:

(a) consolidate previous DIFC Court Orders relating to the SCT, namely:

(a) DIFC Courts Order No. 2 of 2007 establishing the Small Claims Tribunal (“SCT Order”);

(b) DIFC Courts Order No. 1 of 2010 – Limits of Jurisdiction;

1. DIFC Courts Order No. 1 of 2014 – Additional Members of the SCT;

(c) DIFC Courts Order No. 2 of 2014 – Resolution of Rental Disputes;

(d) DIFC Courts Order No. 1 of 2015 – Jurisdiction of the SCT;

(e) DIFC Courts Order No. 1 of 2016 – Additional Members of the SCT;

(f) DIFC Courts Order No. 2 of 2016 – Additional Members of the SCT;

(g) DIFC Courts Order No. 1 of 2017 – Legal representation in hearings before the SCT;

(h) DIFC Courts Order No. 3 of 2017 – Additional Members of the SCT;

(i) DIFC Courts Order No. 1 of 2018 – Additional Members of the SCT;

(j) DIFC Courts Order No. 5 of 2019 – Small Claims Leasing Tribunal;

(b) set up and establish new sub-divisions within the SCT, as follows:

(i) Small Claims Leasing Tribunal (**“SCLT”**);

(ii) Small Claims Employment Tribunal (**“SCET”**); and

(iii) any other division ordered to be established by the Chief Justice,

all of which shall be registered under the category “SCT” and will remain under the procedural supervision of the SCT Registrar.

(2) For the avoidance of doubt, this Order shall succeed and replace the SCT Order, and shall be known as the "DIFC Small Claims Tribunal Order No. 1 of 2021".

Jurisdiction

(3) The SCT shall hear claims:

(a) where the amount of the claim or the value of the subject matter of the claim does not exceed AED 500,000 (five hundred thousand UAE Dirhams);

(b) where the claim relates to residential and commercial leasing/rental located within the Dubai International Financial Centre where the amount of the claim does not exceed AED 1,000,000 (one million UAE Dirhams) as part of the SCLT;

(c) where the claim relates to the employment or former employment of a party lo-cated within the Dubai International Financial Centre where the amount of the claim does not exceed AED 500,000 (five hundred thousand UAE Dirhams); and all parties elect in writing that it be heard by the SCET (there is no value limit for the SCET's elective jurisdiction in the context of employment claims);

(d) which do not fall within the provisions of sub-paragraphs (a) (b) or (c) above, but in respect of which:

(i) the amount of the claim or the value of the subject matter of the claim does not exceed AED 1,000,000; and

(ii) all parties to the claim elect in writing that it be heard by the SCT, and such election is made in the underlying contract (if any) or subse-quent to execution of that contract;

or

(e) such other claims as may be ordered or directed by the Chief Justice to be heard by the SCT from time to time.

SCT Appeals

(4) Pursuant to Article 28 of the DIFC Courts Law No. 10 of 2004 a limited right of appeal will lie from the decisions of SCT Judges as set out therein.

(5) For the purposes of this Order, claims shall include counterclaims, save where a counterclaim would not otherwise be within the SCT's jurisdiction. An SCT member shall have power to direct that the proceedings be transferred to the Court of First Instance of the DIFC Courts. 'Employment' where used in this Order shall mean the relationship under a contract for the provision of services by a natural person (whether under a contract of employment or otherwise).

(6) For the avoidance of doubt it is declared that permission to appeal an SCT judgment may be made subject to such conditions, as the SCT Judge may consider appropriate including conditions relating to the costs of the appeal. Without prejudice to the generality of the for-going, permission may be made

conditional upon the appellant agreeing not to seek any costs Order against the respondent if the appeal succeeds, or to bear both parties' costs of the appeal in any event.

Members

(7) H.E. Justice Nassir Al Nasser, H.E. Justice Maha Al Mehairi, Nour Hineidi, Ayesha Bin Kalban, Hayley Norton and Delvin Sumo are appointed Members of the DIFC Courts Small Claims Tribunal for so long as they hold that office.

(8) The Chief Justice shall appoint additional members by way of an appointment letter.

(9) Members of the Small Claims Tribunal shall be known as SCT Judges when they are acting in that capacity.

Administration

(10) The Chief Justice shall appoint the SCT Registrar and a Deputy Registrar.

(11) A separate register of proceedings in the SCT shall be maintained under the general direction of the SCT Registrar.

(12) I authorise such Rules for the administration of the SCT as shall be enacted and published as part of the RDC pursuant to Article 31 of the DIFC Courts Law. Such Rules shall also regulate the conduct of proceedings in the SCT and the enforcement of rulings and judg-ments of SCT Judges.

Effect

(13) This Order shall take effect from 1 June 2021 and RDC Rule 53(2) shall be interpreted accordingly.

Chief Justice Zaki Azmi
Dated: 20 April 2021